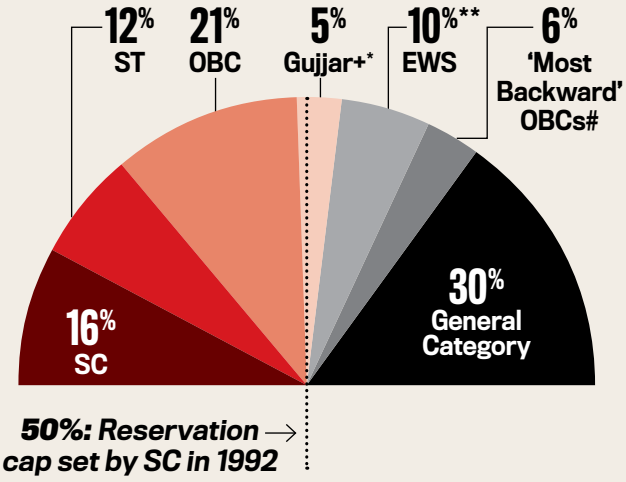
THE RESERVATION PIE

The 6% additional quota will take the total slots reserved for OBCs in jobs and educational institutes in Rajasthan to 70%



**Clubbed with four other nomadic communities as Most Backward Class; under judicial review*

***Upheld by Supreme Court in 2022*

#Announced in Aug. 2023; caste census to determine beneficiary communities

his side, the three-time Rajasthan CM made these announcements at a rally in Banswara district. In India, the last caste data was published in the 1931 census. In recent years, political parties that draw support from backward castes have been increasingly calling for a fresh caste census. They reason that the exercise is needed to obtain up-to-date data on the demographics and socio-economic status of various castes, which could potentially impact reservation policies. Lately, led by Rahul, even the Congress has backed this demand, though the Bharatiya Janata Party (BJP)-led Union government remains non-committal. Bihar's Grand Alliance government, of which the Congress is a constituent, has already conducted such a survey, though it is now mired in legal tangles.

At present, Rajasthan has 21 per cent slots reserved for OBCs in government jobs and educational institutes. But the communities have for long been asking for the quota to be enhanced to 27 per cent, reasoning that OBCs actually account for a much larger share of the state's population. "We will fulfil this demand for original OBCs," the CM said during the August 9 rally. The additional six per cent quota will take the total quota in the state to 70 per cent, well above the 50 per cent ceiling imposed by the Supreme Court in 1992. So, first, it will most likely have to pass legal scrutiny.

GEHLOT'S CANNY PRE-POLL MOVE TO ALLOT A SPECIAL 6% QUOTA FOR 'ORIGINAL' OBCs IS LIKELY TO RUN UP AGAINST LEGAL SCRUTINY, BUT THE BJP WILL BE WARY OF ITS FALLOUT

What exactly does Gehlot mean by original OBCs? There's a vexed history here. On October 27, 1999, the Atal Bihari Vajpayee-led BJP government at the Centre had granted OBC status to the Jats. Gehlot, who had become the Rajasthan CM for the first time just the year before, was opposed to any such move within the state, as other backward castes that had voted for him feared the prosperous and politically influential Jats would corner most of the quota benefits. But nudged by the Congress high command, a reluctant Gehlot fell in line within a week. Since then, the non-Jat backward castes have been calling themselves original OBCs and want a special quota for themselves.

That said, the OBC status for Jats had another fallout. The Gujjars, who until then were the most dominant among OBCs, launched a violent agitation in 2008 for Scheduled Tribe (ST) status. In Rajasthan, the Meena community has a near-monopoly over the 12 per cent ST quota and was naturally opposed to the idea. Trying to find a middle ground, the then Vasundhara Raje-led BJP regime granted five per cent reservation to Gujjars along with four other nomadic OBC communities—the Banjaras, Gadia Lohars, Raikas and Gadarias—by clubbing them together as Most Backward Class (MBC). This took the total reserved seats beyond the SC-stipulated cap of 50 per cent. The courts have repeatedly struck it down, with both Gehlot and Raje having tried to reinstate the quota (see *The Reservation Pie*). The latest attempt was made in February 2019, when the state assembly also okayed a 10 per cent reservation for the EWS (economically weaker section) within general quota, soon after Parliament passed such a bill. This took the total reserved seats to 64 per cent.

Now, with the new six per cent reservation, which he later clarified was meant for the "most backward" OBCs, Gehlot is trying to ingratiate himself with the non-Jats—the Malis, Kushwahas and such. But in line with the Congress's stand and so as to not offend the Jats, the CM claims a caste census will be held first to assess the backwardness of each caste. Rajendra Singh Rathore, leader of the Opposition in the Rajasthan assembly, reasons that the Congress doesn't have much time to conduct the caste census or implement the new quota before the elections. But known to be a shrewd tactician, Gehlot has certainly bowled a googly to the BJP, which will now have to reassess its caste outreach in the state. ■